

any warrant, commitment, or written authority. One Gooding had assisted a prisoner, so committed, to escape, and, being indicted therefor, contended that the custody was not lawful on that account, and, if so, there was no offence: but the judges decided unanimously that the custody was lawful, notwithstanding there was no writing: *The King v. Gooding*, cited in *Davis v. Copper*, 10 B. & C. 34, 5 M. & R. 53. Now, the jurisdiction under the charter is left largely to the discretion of the vice-chancellor; and an imprisonment thereunder may be thought to be in closer analogy with a commitment to suppress immediate disorder, and for further inquiry, than with a commitment in execution of a sentence for a definite crime. The description of the offence is extremely undefined, and the power is, to imprison, not only those who are guilty, but also those who are suspected of evil. In trusting this wide discretion to the university, the legislature must have considered that it would be exercised only according to need, for suppressing immediate disorder: and it seems essential for its reasonable exercise that there should be power to make further inquiry by the officers of the university, and to remit the imprisonment whenever the result of such inquiry should make it right so to do, as was the case with the present plaintiff. It is not, however, necessary to pursue this subject further. Suffice it to observe that the proposition advanced in argument, that the law requires a warrant in every case of commitment, is clearly erroneous. We therefore are of opinion that a committal in the exercise of this peculiar jurisdiction, where no special method is directed by the statute, although it was not [556] shewn to be made under a warrant, gives no cause of action. The case of *Hutchinson v. Lowndes*, 4 B. & Ad. 118, was relied on for the plaintiff to prove the contrary. There, the defendant was held liable in trespass because he committed the plaintiff to prison orally, without any warrant in writing, and kept him in prison beyond a time reasonably required for making out a warrant: but the ground of the judgment is expressed to be, because the statute which created the special authority under which the committal was made also enacted that the authority so created should be exercised by making a warrant in writing. The decision, confined to that ground, is, by implication, an authority against an action of trespass for a commitment without a warrant, where the statute does not enact that the newly-created authority shall be exercised by warrant, and where there is no implication that the legislature intended to make a warrant essential. We should further observe, in respect to *Hutchinson v. Lowndes*, that the plea was the general issue by statute; but, if the justification had been pleaded in extenso, as here, the plaintiff could not have recovered for the excess of jurisdiction in imprisoning beyond the time so reasonably required, without a special replication, or a new assignment of excess. So, if the plaintiff here relied on any excess beyond the justification, she could not avail herself of it without so pleading.

With respect to the objection that the place of imprisonment was unlawful, because it was not proved to be a common gaol, that also appears to us to be unfounded. In support of it the plaintiff relied on the general rules stated in Bacon's Abridgment Gaol and Gaoler (A.), that gaols can only be erected by act of parliament, and on the statute of Henry IV., requiring a commitment to be made to a common gaol, and on the ab-[557]-sence of any grant of a gaol to the university. But, considering the purpose for which the jurisdiction was created, and the nature of the fact for which the party was to be imprisoned, and referring to the observations before made on this point in relation to the absence of a warrant, and considering also that the place of confinement appeared to be the accustomed place used for that purpose by the university, we are bound to presume the usage to be lawful till the contrary is shewn,—which was not done here. There may be a lawful gaol in the keeping of a subject, by prescription or grant: see 2 Inst. 100, and the statute 19 H. 7, c. 10, giving the custody of all the King's gaols, prisons, and prisoners to the sheriffs (a), and putting an end to many gaols held by individuals, except all gaols whereof any person or corporation have the keeping of estate of inheritance or by succession. It well consists with history (see 4 Inst. 255), and the evidence in this cause, that the university had, at the time of that statute, if not from its very foundation, among its privileges and franchises, a place for the confinement of some classes of prisoners committed by its own officers, and that the same privilege and franchise has continued by succession to the present time, and so made the place a lawful prison for the purpose to which

(a) See the 21 & 22 Vict. c. 22.